

State vs Sachin on 15 November, 2025

IN THE COURT OF SH. VIRENDER KUMAR KHARTA,
ADDITIONAL SESSIONS JUDGE (FTC)-02, CENTRAL
DISTRICT, TIS HAZARI COURTS, DELHI

In the matter of:-

(Sessions case no. 114/2020)

FIR No.	173/2019
Police Station	Roop Nagar
Charge-sheet filed under Sections	302/304B/498A/34 IPC.
Charges framed against accused	498A/34 IPC, 304B IPC & 302 IPC.

State	Versus	Sachin, S/o Sh. Ravi Shankar, R/o Jhuggi No. T-42, Shakti Nagar, Delhi.
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...Accused.

Date of Institution of case	22.02.2020
Date of Arguments	03.11.2025 & previous dates
Judgment reserved on	03.11.2025
Judgment pronounced on	15.11.2025
Decision	Convicted

JUDGMENT

1. Accused Sachin is facing trial for the offences punishable under Sec. 498A/34 IPC, 304B IPC & 302 IPC. The case of the prosecution is that from 10.07.2019 to 15.11.2019 i.e. after marriage of deceased Suman with accused Sachin and accused being husband of deceased Suman along with his family FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 1 of 84 members (not charge-sheeted) in furtherance of their common intention, subjected deceased Suman to cruelty for unlawful demand of dowry. Further on 15.11.2019 at T-Hut 42, Near under bridge, Shakti Nagar, Suman died in unnatural circumstances within seven years of her marriage and soon before her death and she was subjected to cruelty and harassment by accused and his family members in connection with demand of dowry. Further on 15.11.2019, accused committed murder of his wife Suman.

2. The brief facts which are borne out from the record of the case are that on 15.11.2019, on receipt of DD No. 9A, Ex. PW-1/D regarding admission of a dead lady by her husband in Deep Chand Bandhu Hospital, PW-6 ASI Rajeev Kumar along with Ct. Prakash Saini went to the hospital and collected the MLC of deceased Suman, Ex. PW-4/A and found that there was gash wound on the head of deceased. In the meanwhile, mother of deceased also came there who identified the dead body of deceased Suman and informed that marriage of deceased was solemnized in July, 2019. Thereafter

PW-6 ASI Rajeev Kumar informed his senior officers as well as the concerned SDM about the deceased and her MLC. Thereafter Inspector Rajender Kumar, SI Sanjay Kaushik, SI Akash & HC Surender came to the hospital. Mobile Crime Team was also called at the hospital and the photographer of mobile crime team took photographs of deceased. Thereafter PW-6 ASI Rajeev Kumar apprehended husband of deceased, who was also present in the hospital, on identification of mother of deceased. The dead body of deceased FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 2 of 84 Suman was got preserved in mortuary. Thereafter, PW-6 ASI Rajeev went to the spot of incident i.e. T-Huts-42, Shakti Nagar, Delhi along with mother of deceased as well other other police officials, where blood was found scattered on ground and one blood stained pair of gents slipper, one blood stained single lady's slipper, one blood stained piece of stone and one blood stained shawl were also found there. Thereafter Crime team was also called which inspected the spot of incident as well as took its photographs. Thereafter PW-6 ASI Rajeev seized aforesaid bloodstained items as well earth control, blood stained earth control in different parcels/plastic, from the spot of incident vide seizure memos Ex. PW-6/A to Ex. PW-6/G. Thereafter, PW-6 ASI Rajeev along with mother of deceased returned to Police Station, where Executive Magistrate recorded statement of mother of deceased, Ex. PW-2/A and he directed the SHO to take necessary action, as per law on the allegations levelled by mother of deceased. Thereafter, on direction of SHO, PW-6 ASI Rajeev prepared rukka, Ex. PW-6/H and got the present FIR registered under Sec. 304B/498A/34 IPC. During investigation, PW-6 ASI Rajeev arrested accused Sachin, conducted his personal search and recorded his disclosure statement vide memos Ex. PW-6/I to Ex. PW-6/K. During investigation, IO also seized mobile phone of deceased vide seizure memo Ex. PW6/L, prepared pointing out memo of spot of incident, Ex. PW6/M, seized the blood stained clothes of accused vide seizure memo Ex. PW-6/N and prepared site plan, Ex. PW-21/B. During investigation, IO also recovered weapon of offence i.e. a shocker of e-rickshaw, FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 3 of 84 embedded with letters 'SA SAARTHI' at instance of accused Sachin from a vacant plot of land situated near the spot of incident, which was seized by the IO vide seizure memo Ex. PW-6/O.

3. On 16.11.2019, IO got conducted the postmortem on the dead body of deceased, seized biological exhibits of deceased and after postmortem, the dead body of deceased was handed over to parents of deceased. During investigation, IO also seized broken gas stove and cylinder vide seizure memo Ex. PW-7/D and marriage card of deceased vide seizure memo, Ex. PW-3/B. IO also sent the exhibits to FSL for expert opinion and sought opinion with respect to histopathology of deceased. During investigation, IO also collected postmortem report of deceased in which doctor had opined about caused of death as 'carnio- cerebral damage consequent upon blunt force impact which was sufficient to cause in death in ordinary course of nature' and thereafter Sec. 302 IPC was added in case diary. During investigation, IO also collected copies of DD entries, obtained CDR & CAF of relevant mobile phones and got prepared scaled site plan. On completion of investigation, the charge-sheet was filed by the IO through SHO in the Court. After receiving of FSL Report, Histopathology report and CDR/CAF, supplementary charge-sheet was also filed before the court, through SHO.

4. Vide order dated 18.02.2020, copy of the charge- sheet under Section 207 Cr.P.C was supplied to accused Sachin FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 4 of 84

and the case was committed to the Court of Sessions under Sec. 209 Cr.P.C.

5. Vide order dated 03.08.2022, the Ld. Predecessor Court was pleased to frame charges under Sec. 498A/34 IPC, 304B IPC & 302 IPC against accused, to which he pleaded not guilty and claimed trial.

6. To prove its case, prosecution has examined 23 witnesses. The testimonies of prosecution witnesses along with its nature has been discussed briefly in the following paragraphs:-

7. PW-1 W/ASI Rajrani, was the Duty Officer at PS Roop Nagar. She proved copy of FIR, her endorsement on rukka and certificate under Sec. 65B of The Indian Evidence Act as Ex. PW-1/A to Ex. PW-1/C. She also proved copies of DD Nos. 9A, 10A, 24A & 28A, all dated 15.11.2019 as Ex. PW-1/E to Ex. PW-1/G. She also proved copy of DD No. 19A, dated 16.11.2019 as Ex. PW-1/H. In her cross-examination, she denied the suggestion that the said certificate was not as per the law. She also denied the suggestion that the contents were later on insterted at instanse of IO.

8. PW-2 Smt. Laungshree, was the complainant/mother of deceased. She deposed that her daughter deceased Suman got married with accused Sachin on 10.07.2019. She further deposed that intially her daughter deceased Suman resided with her husband Sachin at village Meera ki chowki, Badaun, UP for about 15 days and thereafter they came to reside at their jhuggi FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 5 of 84 bearing no. T-42, FCI Godown, Shakti Nagar, Delhi. She further deposed that about ten days prior to the festival of Diwali, her daughter Suman telephonically informed her that she was having pain in her stomach and her husband Sachin was not taking her for treatment. She further deposed that she talked with Sachin over the mobile phone and asked him as to why he was not taking Suman for medical treatment upon which Sachin replied that he did not have money. She further deposed that Sachin also told her that they had not given enough dowry in marriage as per his social status and asked her to bring her daughter back. She further deposed that after 2-3 days, her husband Sh. Hari Chand came to Delhi for taking away her daughter Suman and her husband Sh. Hari Chand was asked for a sum of Rs. 50,000/- for purchasing an e-rickshaw by accused Sachin and his mother Smt. Raj Kumari. She further deposed that when her daughter came back to their native place, it was told to her by her daughter Suman that her husband Sachin was asking for money for purchasing e-rickshaw and accused Sachin and his mother Smt. Raj Kumari used to harass her daughter on regular basis. She further deposed that on 10.11.2019, accused Sachin came to their house to take her daughter Suman back and there also accused Sachin quarreled with her daughter Suman for bringing money. She further deposed that accused Sachin took her daughter Suman back to Delhi on 11.11.2019 after giving assurance that he would not ill treat her daughter. She further deposed that on 11.11.2019, in the evening, she made a call to her daughter Suman upon which it was told to her by her daughter that accused FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 6 of 84 Sachin had again quarreled with her for not bringing money and also broken chullah (gas chullah). She further deposed that on the next day i.e. 12.11.2019, in the morning, her daughter Suman made a telephonic call to her from Mohalla Clinic and told that she was given beatings by accused Sachin and the doctor concerned was also brought on line by her daughter in which the said doctor asked her to come there as her daughter had received grave injuries and she told the doctor that she was at a far place away and could not come

that day and asked them to give proper treatment to her daughter. She further deposed that at that time, accused Sachin and his mother Smt. Raj Kumari were also there and her daughter was brought back to her matrimonial home without any treatment. She further deposed that next day i.e. on 13.11.2019, she along with her husband came to the matrimonial home of her daughter and met with father and mother of accused Sachin apart from accused Sachin and asked them to take her daughter back but they did not allow her daughter to go back with them. She further deposed that next day, she telephonically called her daughter and came to know that no treatment was given to her. She further deposed that next day i.e. 15.11.2019, she left for Delhi from her native place and while she was on the way, she talked to her daughter who told her that due to the beatings given by accused Sachin 'jo uske pet me bachcha tha wo kharab ho gaya hai' and doctor was telling that first police case would be registered and thereafter treatment would be given. She further deposed that she over heard accused Sachin saying to her FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 7 of 84 daughter that he would first kill her daughter Suman and thereafter police case would be registered. She further deposed that she kept calling her daughter repeatedly but her phone was not picked up and after sometime, she received a call from the mobile phone of her daughter and it was Smt. Raj Kumari who was calling from the mobile phone of her daughter and she told her that 'Suman ne kuch kar liya hai' and she immediately disconnected the call. She further deposed that upon her repeated calls, accused Sachin picked up the phone and told her that Suman could not talk right now as he had brought Suman to Deep Chand Bandhu Hospital and she had eaten up something. She further deposed that she reached Deep Chand Bandhu Hospital and there she met Smt. Raj Kumari and accused Sachin and their clothes were stained in blood. She further deposed that in the hospital, she found her daughter lying stained in blood and she was declared dead by the doctors. She also deposed that despite giving enough dowry in the marriage of her daughter according to their paying capacity, accused Sachin, his mother Smt. Raj Kumari, his father Sh. Ravi Shankar, Smt. Preeti, Smt. Priyanka and Neetu were responsible for the death of her daughter. She proved her statement given to Executive Magistrate as Ex. PW-2/A. She also proved dead body identification memo of her deceased daughter Suman as Ex. PW-2/B and dead body handing over memo Ex. PW-2/C. She also proved seizure memo of jewellery worn by her daughter Suman at the time of her death, handing over memo of said jewellery, marriage card of her deceased daughter, six photographs of her daughter with accused FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 8 of 84 prior to the marriage, seven photographs of marriage of her daughter and eight photographs of deceased Suman as Ex. PW-2/D to Ex. PW-2/E. This witness correctly identified accused during her deposition before the court.

9. PW-2 Smt. Laungshree was cross-examined at length on behalf of accused. In her cross-examination, she deposed that she had given her statement to the police officials only once, however, they had inquired from her twice and police recorded her statement on 15.11.2019. She also deposed that expenses in the marriage were incurred out of their savings and some loan was also taken. She also deposed that dowry in the marriage was given upon the demand of mother of accused Sachin. She also deposed that accused Sachin used to ply e-rickshaw but she did not remember whether she had told to the police in her statement that the mother of accused was also demanding Rs. 50,000/- for purchase of e-rickshaw as at that time she was crying profusely due to the loss of her daughter. She also deposed that she did not remember whether she had told to the police that accused Sachin had told her husband that accused Sachin would give treatment to her

daughter after earning money from plying e-rickshaw. She also deposed that she had told to the police that when her daughter came to their house, she had told her that accused Sachin was asking for money for purchase of e-rickshaw. She also deposed that she had told to the police that accused Sachin and his mother used to harass her daughter on regular basis. She admitted that she had told to the police in her statement, Ex.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 9 of 84 PW-2/A that 'Sachin zid karke meri beti ko lekar Delhi aa gya' and she also admitted that in her examination-in-chief she told that on 11.11.2019, accused Sachin took her daughter back after giving assurance that he would not ill treat her daughter. She denied the suggestion that no quarrel took place with respect to bringing of money. She also deposed that she came to know from her daughter when she made her telephonic call in the evening hours on 12.11.2019 that she was brought by accused Sachin and his mother from the hospital without her treatment. She also deposed that accused had not directly demanded money from her.

10. PW-3 Sh. Hari Chand, was the father of deceased. He deposed that her daughter namely Suman got married with accused Sachin on 10.07.2019 and they had given enough dowry as per their capacity in the marriage of their daughter and spent around Rs. 3.5 lakhs. He further deposed that initially her daughter deceased Suman resided with her husband Sachin at village Meera ki chowki, Badaun, UP for about 15 days and thereafter they came to reside at their jhuggi bearing no. T-42, FCI Godown, Shakti Nagar, Delhi. He further deposed that about ten days prior to the festival of Diwali, her daughter Suman telephonically informed his wife Smt. Laungshree that she was having pain in her stomach and accused Sachin and his mother Smt. Raj Kumari were not taking her for treatment. He further deposed that he talked with accused Sachin and Smt. Raj Kumari who told that they had not given enough dowry in marriage as per their status. He further deposed that exact date, he did not FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 10 of 84 remember, however, he came to Delhi at the matrimonial house of his daughter and asked accused Sachin and his mother Smt. Raj Kumari as to why they were not getting her daughter treated to which they replied that they did not have money upon which he told them that by this way his daughter would die for want of treatment. He further deposed that they also asked for a sum of Rs. 50,000/- for the purchase of one e-rickshaw and told that accused Sachin would earn money with that e-rickshaw and get his daughter treated. He further deposed that he told them that he being a poor agriculturist, did not have that much money at that time and took her daughter Suman along with him to their village. He also deposed that they got their daughter treated at their place and she got well. She further deposed that on 10.11.2019, accused Sachin came to their house and started quarreling with her daughter Suman as to why she was not asking for money from them. He further deposed that on 11.11.2019, accused Sachin swore on his father and mother that he will not ill treat her daughter and upon his assurance, they let their daughter to go with them. He further deposed that in the evening, when his wife called her daughter, she was informed that accused Sachin had again quarreled with her. He also deposed that they had given one mobile phone to their daughter Suman on the festival of Bhaidooj and they used to have conversation with their daughter only on that mobile phone. He further deposed that on 12.11.2019, her daughter Suman had telephonically informed his wife that accused Sachin had beaten her and thereafter she was being taken to Mohalla clinic. He also deposed that in the FIR No. 173/2019, PS: Roop Nagar State Vs.

Sachin. Page No. 11 of 84 afternoon hours, the doctor concerned in the Mohalla clinic called from the mobile phone of her daughter and told that her daughter was in injured condition and due to her injuries, the child in her womb got destroyed and first police case would be registered and thereafter, she would be treated and asked them to come urgently. He further deposed that on 13.11.2019, they went to the matrimonial house of her daughter where accused Sachin, Preeti, Priyanka and other family members were there and he asked them that they would take their daughter along with them for treatment but they refused and the mother-in-law of his daughter had assured them that they would get her daughter treated, however, accused Sachin had refused and they left for their native place after the assurance. He further deposed that on 15.11.2019, he had gone to his work and his wife was at home and his wife was coming to Delhi and during the course of her journey, she received a call from their daughter that the doctor was saying there would be cleaning of her womb after registration of police case and accused Sachin told her daughter that first he would kill her and thereafter police case would be registered. He also deposed that Smt. Raj Kumari telephonically informed that his daughter had done something and disconnected the call. She further deposed that despite trying, the call could not be connected and after a lot of time, accused Sachin picked the phone and told that Suman had eaten something and she was unconscious and they were taking her daughter to Deep Chand Bandhu Hospital. He further deposed that at Deep Chand Bandhu Hospital, her daughter was lying dead and her head was having FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 12 of 84 injury marks and Smt. Raj Kumari and accused Sachin were stained with blood. He further deposed that her daughter was declared brought dead by the doctor concerned. He also deposed that his daughter had been killed by accused Sachin along with his mother Smt. Raj Kumari, his father Ravi Shankar, Smt. Preeti, Smt. Priyanka and Neetu for dowry. He proved dead body identification memo of deceased Suman, dead body handing over memo, marriage card of his daughter along with photographs of marriage and list of articles/expenses as Ex. PW-3/A, Ex. PW-2/C & Ex. PW-3/B. He also proved marriage card of her daughter, photographs and list of articles/expenses as Ex. PW-2/F, Ex. PW-2/G & Ex. PW-3/C. This witness could not be cross-examined on behalf of accused persons as he got expired on 02.03.2024.

11. PW-4 Dr. Jyotsna Saini, CMO, Deep Chand Bandhu Hospital, deposed that on 15.11.2019, patient Suman, W/o Sachin was brought to Casualty at 02:36 pm by her husband Sachin. She further deposed that patient was brought dead in the Casualty and there were multiple injuries on the person of deceased Suman. She also deposed that the dead body was handed over to the IO for forensic examination. She proved MLC No. 6433/19 of deceased as Ex. PW-4/A. This witness was not cross-examined on behalf of accused despite opportunity given to him.

12. PW-5 Sh. Vijay Kumar, Retd. Executive Magistrate, deposed that on 15.11.2019, on receiving DD No. 9A from PS Roop Nagar that a female namely Suman, aged 23 years had FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 13 of 84 been admitted vide MLC No. 6433/19, as brought dead at Deep Chand Bandhu Hospital, he went to PS, where he met mother of deceased namely Smt. Laungshree and other relatives of deceased. He further deposed that he recorded statement of mother of deceased, Ex. PW-2/A, wherein mother of deceased told that her daughter Suman was married with Sachin in the year July, 2019 and her daughter was harassed and subjected to cruelty for the purpose of dowry by Sachin and his family members. He further deposed that he instructed

SHO to take necessary action and present case was registered and during investigation accused Sachin was arrested by the police and the dead body of the deceased Suman was preserved at Subzi Mandi Mortuary for postmortem. He proved his request letter for postmortem and brief facts of the case as given to the concerned doctor as Ex. PW-5/A & Ex. PW-5/B. In his cross-examination, he denied the suggestion that the complainant had given a wrong statement to him as her husband and IO had tutored her. He also denied the suggestion that at the time of recording the statement of complainant, police was present with the complainant.

13. PW-6 ASI Rajeev Kumar was the first IO in the present case. He deposed that on 15.11.2019, on receipt of DD No. 9A, Ex. PW-1/D regarding admission of a dead lady by her husband at Deep Chand Bandhu Hospital, he along with Ct. Prakash Saini went to the hospital and collected the MLC of deceased Suman, Ex. PW-4/A and found that there was gash wound on the head of deceased. He further deposed that in the meanwhile, mother of FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 14 of 84 deceased also came there who identified the dead body of deceased Suman and informed that marriage of deceased was solemnized in July, 2019. He further deposed that he informed his senior officers as well as the concerned SDM about the deceased and her MLC and thereafter Inspector Rajender Kumar, SI Sanjay Kaushik, SI Akash & HC Surender came to the hospital and Mobile Crime Team was also called at the hospital who took photographs of deceased. He further deposed that he apprehended husband of deceased, who was also present at the hospital, on identification of mother of deceased and dead body was got preserved in mortuary. He further deposed that he along with other police officials went to the spot of incident i.e. T- Hut-42, Shakit Nagar, Delhi along with mother of deceased as well other other police officials, where blood was found scattered on ground and one blood stained pair of gents slipper, one blood stained single lady's slipper, one blood stained piece of stone and one blood stained shawl were also found there. He further deposed that thereafter Crime team was also called which inspected the spot of incident as well as took its photographs. He further deposed that he seized aforesaid bloodstained items as well earth control, blood stained earth control in different parcels/plastic, from the spot of incident vide seizure memos Ex. PW-6/A to Ex. PW-6/G. He further deposed that he along with mother of deceased returned to Police Station, where Executive Magistrate recorded statement of mother of deceased, Ex. PW-2/A and he directed the SHO to take necessary action, as per law on the allegations levelled by mother of deceased. He further FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 15 of 84 deposed that on direction of SHO, he prepared rukka, Ex. PW-6/H and got the present FIR registered under Sec. 304B/498A/34 IPC. He further deposed that he arrested accused/husband of deceased, conducted his personal search and recorded his disclosure statement vide memos Ex. PW-6/I to Ex. PW-6/K. He further deposed he also seized mobile phone of deceased vide seizure memo Ex. PW6/L, prepared pointing out memo of spot of incident, Ex. PW6/M, seized the blood stained clothes of accused vide seizure memo Ex. PW-6/N. He further deposed that he also got recovered weapon of offence i.e. a shocker of e-rickshaw, embedded with letter 'SA SAARTHI' at instance of accused from a vacant plot near the spot of incident, which was seized vide seizure memo Ex. PW-6/O. This witness correctly identified accused as well as case property during his deposition before the court. In his cross-examination, he deposed that he reached hospital at around 03:15 pm and complainant reached hospital at around 05:00 pm. He also deposed that the Executive Magistrate reached hospital at around 06:30 pm. He also deposed that he along with other police officials were present at the time of recording statement of

complainant Smt. Laungshree. He denied the suggestion that he along with other police officials including IO R.K. Meena explained the complainant prior to giving her statement to Executive Magistrate. He deposed that he had no knowledge whether the accused persons were having battery rickshaw at the time of alleged incident. He also deposed that he did not notice whether blood stains were present on the wall or not. He admitted that FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 16 of 84 accused had stated that injured had herself inflicted injury. He denied the suggestion that he did not conduct fair investigation. He also denied the suggestion that he did not join the public persons in the investigation deliberately.

14. PW-7 SI Akash Deep, deposed that on 16.11.2019, he along with Inspector Rajinder Kumar went to the Subzi Mandi Mortuary where he obtained three sealed parcels seized vide seizure memos Ex. PW-7/A, Ex. PW-7/B & Ex. PW-7/C containing biological exhibits and clothes of the deceased from the concerned doctor. He further deposed on 02.12.2019, he along with IO went to Jhuggi No. T-42, Shakti Nagar at first floor where Shivam, brother of accused Sachin, produced one gas cylinder and one gas stove with pipe, which was seized by IO vide seizure memo Ex. PW-7/D. He further deposed that on 07.12.2019, father of deceased handed over marriage card, photographs of marriage and list of expenses/expenditure in marriage of deceased which was seized by IO vide seizure memo Ex. PW-3/B. In his cross-examination, he deposed that dead body of deceased was got identified through parents of deceased. He also deposed that no independent witness/neighbour was called at the time of seizure of cylinder and gas stove. He also deposed that he never visited the place of incident. He also deposed that that father of deceased came in Police Station to hand over the documents, which were taken in possession vide seizure memo Ex. PW-3/B. He denied the suggestion that he never joined the FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 17 of 84 investigation or that he was deposing falsely at the instance of IO.

15. PW-8 Ct. Harikesh, deposed that on 28.11.2019, on direction of IO, he obtained ten sealed parcels with two sample seals vide RC No. 75/21/19 and deposited the said parcels at FSL, Rohini and handed over acknowledgment from FSL to MHC(M). He proved copy of RC and acknowledgment as Mark- PW-8/A (colly). In his cross-examination, he deposed that he did not remember the exact time of leaving police station for FSL, however, he went in morning for depositing the same. He denied the suggestion that tempering was done with the sealed parcels before depositing the same at FSL.

16. PW-9 HC Ram Avtar, deposed that on 03.12.2019, on direction of IO/Inspector Rajender Kumar Meena, he obtained sealed exhibit with sample seal from MHC(M) vide RC No. 78/21/19, Mark-PW-9/A and deposited the same in Hindu Rao Hospital and obtained receiving on road certificate at point 'X'. This witness was not cross-examined on behalf of accused despite opportunity given to him.

17. PW-10 ASI Surender Kumar, deposed that on 15.11.2019 he went to Deep Chand Bandhu Hospital along with Inspector Rajender Meena, where ASI Rajiv Kumar and Ct. Prakash were already present. He further deposed that one lady namely Suman had been declared brought dead. He further deposed that Crime Team was called in the hospital which took photographs of deceased and mother of deceased identified the dead body. He FIR No. 173/2019, PS: Roop Nagar State Vs.

Sachin. Page No. 18 of 84 further deposed that husband of deceased (accused Sachin) was also present who was apprehended on the pointing out by mother of deceased and he took him to Police Station. He also deposed that later on, IO returned to the Police Station with mother of deceased and SDM was called by IO, who inquired from mother of deceased and recorded her complaint and thereafter rukka was prepared and case was got registered. He further deposed that husband of deceased was arrested, his personal search was conducted and his disclosure statement was also recorded. He further deposed that accused was found in possession of one mobile phone make LYF containing SIM of Jio company, which was seized by the IO vide seizure memo Ex. PW-6/L. He also proved the seizure memo of blood stained clothes of accused as Ex. PW-6/N, seizure memo of one blood stained shocker of e- rickshaw recovered at instance of accused, Ex. PW-6/O. This witness correctly identified accused as well as case property during his deposition before the court. In his cross-examination, he deposed that no other person was accompanied with him from hospital to police station while taking the accused. He also deposed that statement of mother of deceased was not recorded in his presence. He also deposed that clothes of accused had been got changed in Police Station itself after his arrest and same were taken in possession. He also deposed that shocker was found at the distance of about 20-25 meters from the place of occurrence. He also deposed that no public person was present at the time of seizure of shocker from the park. He denied the suggestion that he had not joined investigation or he had signed all the memos in FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 19 of 84 the Police Station or that no shocker was recovered at instance of accused and the same was planted upon him.

18. PW-11 ASI Kailash, deposed that on 15.11.2019 he was patrolling in the beat and on receiving information, he reached at the spot of incident i.e. T-Huts, 42, Shakti Nagar, Delhi where police staff was already present. He further deposed that blood was scattered on the floor, one pair of gents flip-flop, one lady's slipper, blood stained stone and blood stained shawl were also lying there. He further deposed that Crime Team was called which inspected the spot as well as conducted photography. He further deposed that abovementioned items were lifted and taken into possession by IO. He also deposed that IO also lifted blood stained earth control and earth control from the spot of incident. In his cross-examination, he deposed that he did not remember if wall was also stained with blood or not. He also deposed that 25- 30 public persons were present at the spot outside the room. He also deposed that no person from the family of deceased was present at the spot, however, brother of accused was present there. He denied the suggestion that no information was received or that he did not go to the spot or that no items as abovementioned were lying at the spot or the same was not taken in possession.

19. PW-12 Retd. ACP Mahesh Kumar, was the Draughtsman who proved scaled site plan as Ex. PW-12/A. In his cross- examination, he deposed that spot was at ground floor. He admitted that no blood stained item was lying at the spot when he FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 20 of 84 visited the same. He also deposed that no public person was present at the spot.

20. PW-13 HC Hardev, was photographer at Mobile Crime Team. He proved photographs of a female dead body taken at Deep Chand Bandhu Hospital as Ex. PW-2/I (colly). He also proved photographs of the spot of incident from different angles as Ex. PW-13/A (colly). He also proved the

CD containing the aforesaid photographs as Ex. PW-13/B & Certificate under Sec. 65B of The Indian Evidence Act as Ex. PW-13/C. In his cross- examination, he deposed that he did not remember as to which portion, he took photographs of scene of occurrence. He also deposed that his statement was recorded at the spot and he did not remember whether the statement of any other person was recorded by IO or not.

21. PW-14 Dr. A. S. Bajwa, Specialist, Department of Forensic Medicine, had conducted the postmortem on dead body of deceased Suman. He proved detailed postmortem report of deceased Suman as Ex. PW-14/A. He also opined about cause of death as 'carnio-cerebral damage consequent upon blunt force impact which was sufficient to cause death in ordinary course of nature'. He also deposed that injuries no. 1 to 9 mentioned in the PM report were external injuries and the head injury mentioned at internal examination as mentioned in the PM report were possible by the abovesaid weapon i.e. shocker. In his cross- examination, he deposed that it was unlikely that injury mentioned in the postmortem report could be sustained by hitting FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 21 of 84 head against wall. He also deposed that it was not possible that the injuries mentioned in the postmortem report was produced by self infliction. He also deposed that injuries no. 11 to 14 were caused by sharp pointed weapon. He also deposed that he could not comment that blood stains of deceased was present on the shocker shown to him. He denied the suggestion that abovesaid injuries were not possible with weapon of offence i.e. shocker.

22. PW-15 Dr. Amita Raghav, Junior Forensic Chemical Examiner, FSL Rohini proved her detailed chemical examination report as Ex. PW-15/A. She also proved allelic data, annexed with report as Ex. PW-15/B. In her cross-examination, she deposed that she did not remember as to how much time was taken by her in examining the abovesaid exhibits. She also deposed that separate file of present case was prepared by her and same was lying with FSL, Rohini.

23. PW-16 Sh. Praveen Kumar, Nodal Officer, Reliance Jio, has proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone no. 8178700890 issued in name of Sh. Sumit Kumar as Ex. PW-16/A & Ex. PW-16/A-1. He also proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone no. 9027354213 issued in name of Smt. Premwati as Ex. PW-16/B & Ex. PW-16/B-1. He also proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone no. 6395172134 issued in name of Sh. Inderjeet as Ex. PW-16/C & Ex. PW-16/C-1. He also proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 22 of 84 mobile phone no. 7819868362 issued in name of Ms. Suman as Ex. PW-16/D & Ex. PW-16/D-1. He also proved the Cell ID chart of abovesaid mobile numbers as well as certificate under Sec. 65B of The Indian Evidence Act as Ex. PW-16/E & Ex. PW-16/F. In his cross-examination, he admitted that computer system was not under his control or under his supervision.

24. PW-17 Sh. Pawan Singh, Nodal Officer, Vodafone Idea Ltd. has proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone no. 7065899766 issued in name of Sh. Sachin as Ex. PW-17/A & Ex. PW-17/A-1. He also proved e- KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone no. 7500281157 issued in name of Smt. Preeti Devi as Ex. PW-17/B & Ex. PW-17/B-1. He also proved e-KYC & CDR for the period of 20.07.2019 to 15.11.2019 of mobile phone

no. 9711693805 issued in name of Sh. Sh. Ravi Shankar as Ex. PW-16/C & Ex. PW-16/C-1. He also proved location chart of abovesaid mobile number as Ex. PW-17/C-2. He also proved certificate under Sec. 65B of The Indian Evidence Act with respect to aforesaid mobile phone numbers as Ex. PW-17/D & Ex. PW-17/E. In his cross-examination, he admitted that computer system was not under his control or under his supervision.

25. PW-18 Sh. Rajiv Vashisth, Nodal Officer, Bharti Airtel Ltd. has proved CAF, Voter Id card, CDR & Cell ID Chart of mobile phone no. 9871162052 issued in the name of Smt. Raj Kumari as Ex. PW-18/A to Ex. PW-18/D. He also proved FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 23 of 84 certificate under Sec. 65B of The Indian Evidence Act as Ex. PW-18/E. In his cross-examination, he denied the suggestion that his computer was not in his exclusive custody or that he was not controlling the same or that other person/Nodal Officer had access to his computer.

26. PW-19 HC Manoj Kumar, was the MHC(M) at PS Roop Nagar. He proved entries in register nos. 19 & 21 regarding movements of case properties as Ex. PW-19/A to Ex. PW-19/D. He also proved acknowledgment from FSL regarding deposit of case properties as Ex. PW-19/D-1. In his cross-examination, he admitted that time of depositing the case property was not mentioned in any of the entries. He denied the suggestion that the same was not mentioned deliberately.

27. PW-20 Dr. Sompal Singh, Specialist, Pathology, Hindu Rao Hospital has proved detailed histopathology report of the organs of deceased, conducted by board consisting of himself, Dr. Sonam K. Pruthi, Dr. Aarzoo Jahan and Dr. Praveen Prakash as Ex. PW-20/A. In his cross-examination, he admitted that duration of pregnancy was not mentioned in report. Voluntarily, he deposed that it could not be ascertained. He denied the suggestion that report was false and fabricated.

28. PW-21 Inspector Rajender Kumar, was the second IO in the present case. He deposed that on 15.11.2019, ASI Rajeev Kumar informed him telephonically about a dead lady from Deep Chand Bandhu Hospital. He further deposed that he along with FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 24 of 84 SI Sanjay Kaushik & SI Akash, HC Surender reached the hospital where ASI Rajeev met and shown him the MLC of deceased Suman. He further deposed that mother of deceased and husband, who had brought the deceased, were also present in the hospital. He further deposed that husband of deceased was interrogated and was sent to PS with HC Surender. He also deposed that Crime Team was called in the hospital which conducted photography of deceased, Ex. PW-2/I and dead body of deceased was shifted to the Mortuary, Subzi Mandi. He further deposed that he along with mother of deceased, Crime Team and police staff went to the spot of incident i.e. T-42, near FCI Godown, Railway Line, Shakti Nagar near under bridge, where blood was found scattered at the spot. He further deposed that Crime Team officials inspected and conducted photography of the spot and prepared its report, Ex. PW-21/A and ASI Rajeev lifted exhibits from the spot of incident. He further deposed that SDM was informed who came to Police Station, where he recorded statement of mother of deceased and on the basis of same, present FIR was got registered. He narrated about arrest of accused in the present case and proved his arrest memo, personal search memo and his disclosure statement as Ex. PW-6/I to Ex. PW-6/K. He also narrated about seizure of mobile phone of accused as well as seizure of blood stained clothes of

deceased and proved their seizure memos as Ex. PW-6/L & Ex. PW-6/N. He also narrated about recovery of weapon of offence i.e. shocker of e-rickshaw at instance of accused and proved its seizure memo Ex. PW-6/O. He also narrated about got FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 25 of 84 conducting of postmortem on the dead body of deceased Suman, seizure of biological exhibits of deceased vide seizure memos Ex. PW-7/A & Ex. PW-7/B, seizure of jewellery articles, which were worn by deceased vide seizure memo Ex. PW-7/C and handing of dead body of deceased to her parents after postmortem vide dead body handing over memo Ex. PW-2/E. He also narrated about seizure of gas cylinder & gas stove vide seizure memo Ex. PW-7/D, seizure of marriage card and photographs of deceased vide seizure memo Ex. PW-3/B. He also narrated about his application with respect to histopathology of deceased, Ex. PW-21/C, collection of copies of DD entries, Ex. PW-1/D, Ex. PW-1/E, Ex. PW-1/F, Ex. PW-1/G, Ex. PW-1/H & Ex. PW-21/D. He also narrated about obtaining of CDR & CAF of mobile phone numbers from concerned Nodal Officers vide memo Ex. PW-21/E. This witness correctly identified accused as well as case properties during his deposition before the court. In his cross-examination, he admitted that injured was admitted by her husband and it was mentioned on MLC. He also admitted that many neighbours gathered outside the jhuggi and none of those neighbours was made witness to seizure of abovementioned articles. He denied the suggestion that written proceedings were conducted in Police Station. He denied the suggestion that he had not visited spot with ASI Rajeev during investigation or that hence he was not made witness to seizure of above mentioned articles. He also deposed that he did not know the time when statement of complainant was recorded by SDM. He denied the suggestion that FIR was ante-dated and ante-timed FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 26 of 84 or hence Constable/Messenger was not witness. He also deposed that disclosure statement of the accused was also recorded in the same night and he stopped the proceedings thereafter on that night. He admitted that he did not make brother of accused as a witness to seizure memo of gas cylinder and stove, though he produced the same. He also deposed that he had not collected any evidence with respect to allegations of assault given by accused to deceased Suman from the doctor who had given treatment to deceased Suman. He also deposed that he had not collected any evidence with respect to allegation made by deceased Suman to her mother that doctor had informed that police case would be done thereafter cleaning would be made. He also deposed that after disclosure statement, he had prepared site plan of recovery on 15.11.2019 itself. He also deposed that he did not investigate with respect to incised stabbed wound mentioned at point nos. 11, 12, 13 & 14 of external injuries as mentioned in postmortem report. He denied the suggestion that family members of accused offered x-ray and ultrasound report dated 14.11.2019, Mark PW-21/D-1 of deceased Suman to him but he deliberately did not seize the same. He also denied the suggestion that he had not conducted proper investigation or that accused Sachin had told that deceased Suman had committed suicide.

29. PW-22 Inspector Surender Kumar, was In-charge at Mobile Crime Team. He deposed that on 15.11.2019 on receipt of information from Control Room, he along with Ct. Vikrant, Fingerprint proficient and HC Hardev, Photographer, visited the FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 27 of 84 spot of incident i.e. Jhuggi No. T-42, near FCI Godown, Shakti Nagar, Delhi. He further deposed that he inspected the spot and got photographed the same. He proved his detailed inspection report in this regard as Ex. PW-21/A and photographs as Ex. PW-13/A (colly). In his cross-examination, he deposed that call was received at around 03:30 pm. He also deposed that

firstly, they went to hospital and thereafter they went to Jhuggi No. T-42. He also deposed that site plan was not prepared in his presence. He denied the suggestion that he had not inspected the spot or that he had prepared a false report.

30. PW-23 Inspector Raj Malik, deposed that on 03.01.2022, the investigation of present case was entrusted to him. He further deposed that he collected FSL result, histopathology report and interrogated remaining accused persons and thereafter he prepared supplementary charge-sheet, Ex. PW-23/A and filed before the court of Ld. MM thorough SHO. In his cross- examination, he deposed that he had gone through the case file related to supplementary charge-sheet for remaining investigation. He further deposed that he had not investigated with respect to mobile no. 7065899766 mentioned in Ex. PW-1/D.

31. During, trial, accused admitted the genuineness of Form No. 25.35(1)(B) as Ex. PX-1, under Sec. 294 Cr.PC.

32. After closing of prosecution evidence, statement of accused was recorded under Sec. 313 Cr.PC, wherein he denied FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 28 of 84 all the charges against him. Accused claimed that it was a false case against him and he was innocent. He also claimed that all the witnesses were interested witnesses and he had been falsely implicated on the basis of suspicion.

33. Accused has examined two witnesses in his defence. The nature and testimonies of the defence witnesses have been briefly discussed as under:-

34. DW-1 Sh. Ashwani Sehgal, deposed that he was the owner of Sri Sai Ram e-Rickshaw Company situated at 487/991, Peeragarhi, Industrial Area, Delhi-110087. He further deposed that on 23.03.2016 one battery rickshaw bearing Chasis No. MD9CHAMCRD145818, make Saarthi was sold to Sachin, S/o Sh. Ravi Shankar, R/o 42, T-Huts, near under bridge, Shakti Nagar, Delhi-110007 for consideration of Rs. 1,10,000/- and it was cash down payment. He proved copy of Form No. 22 and copy of Aadhar Card of accused Sachin bearing no. 6223-4634- 7660 as Ex. DW-1/A (OSR). He also proved copy of Invoice No. 0860, dated 15.10.2018 issued in name of Smt. Raj Kumari as Ex. DW-1/C. He also proved copy of Aadhar card of Smt. Raj Kumari as Mark DW-1/D. This witness was not cross-examined by the Ld. Addl. PP for the State despite opportunity given to him.

35. DW-2 Dr. Nishant Kumar Jha, MD Radiology deposed that on 14.11.2019, he was posted as Senior Consultant, Radiologist at Medix Diagnostics & MRI Centre, Pvt. Ltd., C-4, Rana Pratap FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 29 of 84 Bagh, Delhi and he had conducted ultrasound of one female, aged about 23 years. He further deposed that as per finding, it was case-suggestive of missed abortion. He proved his report in this regard as Ex. DW-2/A (colly). This witness was not cross- examined by the Ld. Addl. PP for the State despite opportunity given to him.

36. Final arguments were advanced by Sh. Pankaj Kumar Ranga, Ld. Addl. PP for the State and Sh. G. S. Sharma, Ld. Counsel for accused.

37. Ld. Addl. PP for the State argued that the prosecution has proved its case beyond reasonable doubt and all the prosecution witnesses have supported the prosecution story and have corroborated each other's version. To substantiate his submissions, he argued that death in the present case took place within seven years of marriage of deceased and since there was demand of dowry, the presumption under Sec. 113B of The Indian Evidence Act is applicable in the present case. He further argued that complainant/PW-2 Smt. Laungshree has specifically deposed that accused Sachin demanded Rs. 50,000/- as dowry for purchase of e-rickshaw. He also argued that PW-2/complainant Smt. Laungshree has also narrated about several incidents of cruelty and harassment of deceased Suman by accused Sachin. He also argued that at the time of incident only deceased Suman and accused were present at the spot of incident and accused gave a false information to the Hospital Authority that deceased herself had inflicted injuries on her person. He further argued that FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 30 of 84 PW-14 Dr. A. S. Bajwa has specifically deposed that the said injuries were not self inflicted injuries and were possible by the weapon of offence i.e. shocker recovered at instance of accused and accused has taken a false plea with respect to the injuries. He also argued that the relationship between the accused and deceased were not cordial and accused used to give beatings to deceased. He further argued that on 11.11.2019, accused forcibly took the deceased to his house from her parental house. He also argued that deceased was pregnant and her pregnancy got terminated due to the beatings given to her by the accused and she was not given any medical treatment for clearing the terminated pregnancy. He also argued that PW-2/Complainant Smt. Laungshree was concerned about the beatings given to deceased by accused and for not providing her medical treatment and therefore she used to make several calls to the deceased everyday and the call record between the deceased and PW-2/complainant Smt. Laungshree is relevant. He further argued that the present case is based on circumstantial evidence and the prosecution has proved the complete chain of circumstances against the accused. He further argued that none of the prosecution witness has turned hostile. He also argued that since the prosecution has proved its case against accused beyond reasonable doubt, accused should be convicted under all sections of law under which charges has been framed against him.

38. Per Contra Ld. Defence Counsel argued that the prosecution has miserably failed to prove its case beyond FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 31 of 84 reasonable doubt. To substantiate his point, he argued that the investigation in the present case has been conducted in an arbitrary manner. He argued that the chain of circumstances in the present case is not complete and the accused has been falsely implicated in the present case. He also argued that there are material contradictions in the testimony of PW-2/complainant Smt. Laungshree and hence she cannot be relied upon. He also argued that no demand of dowry was ever made by the accused for purchasing e-rickshaw as he was already having e-rickshaw and he was earning his living through that e-rickshaw. He also argued that DW-1 Sh. Ashwani Sehgal has duly proved that he had sold one e-rickshaw to accused Sachin in the year 2016 and hence there is no question of demand of dowry for the purchase of e-rickshaw. He also argued that DW-2 Dr. Nishant Kumar Jha has proved that ultrasound of deceased was conducted by him and hence the argument of Ld. Addl. PP for the State that the deceased was not being given medical treatment is without any substance. He also argued that DNA of deceased has not been found on the weapon of offence i.e. shocker. He also argued that no independent public person was joined in the investigation at the time of recovery of

shocker. He also argued that IO has not conducted any investigation with respect to injuries no. 11 to 14 mentioned in the Postmortem report. He also argued that there is no eyewitness of the alleged cruelty or harassment for the purpose of dowry. He also argued that accused did not abscond from the spot of incident and rather he took the deceased to the hospital and hence his conduct is relevant. He also argued that FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 32 of 84 since the prosecution has failed to prove its case against the accused beyond the reasonable doubt, accused should be acquitted under all the sections of law under which charges have been framed against him.

39. In the present case, charges Sec. 498A/34 IPC, 304B IPC & 302 IPC have been framed against accused. In case of offence punishable under Sec. 304B IPC, the presumption under Sec. 113B of Indian Evidence Act is also applicable. These Sections have been defined as follows:-

498A Husband or relative of husband of a woman subjecting her to cruelty:-

Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.--For the purposes of this section, "cruelty means

(a) anywilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 33 of 84 304B Dowry death:-

(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

Explanation.For the purposes of this sub-section, "dowry" shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961 (28 of 1961).

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.

113B Presumption as to dowry death:-

When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman had been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the court shall presume that such person had caused the dowry death.

Explanation. For the purposes of this section, dowry death shall have the same meaning as in section 304B of the Indian Penal Code.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 34 of 84 Section 302 IPC provides punishment for the commission of offence of murder which has been defined U/s 300 IPC. 300 Murder:-

Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or Secondly- If it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused, or Thirdly- If it is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death, or Fourthly-If the person committing the act knows that it is so imminently dangerous that it must, in all probability, cause death, or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.

Exception 1 When culpable homicide is not murder.

Culpable homicide is not murder if the offender, whilst deprived of the power of self control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident.

The above exception is subject to the following provisos:-

First-That the provocation is not sought or voluntarily provoked FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 35 of 84 by the offender as an excuse for killing or doing harm to any person.

Secondly- That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of the public servant.

Thirdly-That the provocation is not given by anything done in the lawful exercise of the right of private defence.

Explanations: Whether the provocation was grave and sudden enough to prevent the offence amounting to murder is a question of fact.

Exception 2: Culpable homicide is not murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

Exception 3: Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the power given to him by law and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 36 of 84 Exception 4: Culpable homicide is not murder if it is committed without pre meditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender's having taken undue advantage or acted in a cruel or unusual manner.

Explanation : It is immaterial in such cases which party offers the provocation or commits the first assault.

Exception 5: Culpable homicide is not murder when the person whose death is caused, being above the age of eighteen years suffers death or takes the risk of death with his own consent.

34. Acts done by several person in furtherance of common intention:-

When a criminal act is done by several persons, in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

40. I have thoughtfully considered the arguments advanced, perused the material available on record, scrutinized the evidence led by the prosecution and gone through the relevant provisions of law. I have also considered the judgments relied upon by the Ld. Addl. PP for the State as well as Ld. Counsel for accused.

41. In the present case, the prosecution has to prove that the accused Sachin along with his family members in furtherance of their common intention subjected deceased Suman with cruelty under Section 498A IPC and caused her death for the purpose of dowry under Sec. 304B IPC. Prosecution has also to prove that FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 37 of 84 the accused committed murder of deceased Suman. Thus, the prosecution has to prove the ingredients of Sections 498A/34 IPC, 304B IPC and the ingredients of Sec. 300 IPC, punishable under Sec. 302

IPC against the accused. Section 304B IPC has the following ingredients:-

(i) The death of a women should be caused by burns or bodily injury or otherwise other than the normal circumstances. The death in normal circumstances will not be covered under Sec.

304 B IPC.

(ii) The death of such woman must have taken place within 07 years of her marriage.

(iii) Such women must have been subjected to cruelty or harassment by her husband or any other relative of her husband and such cruelty or harassment must have taken place soon before his death.

(iv) The cruelty or harassment should be for the purpose or in connection with demand of dowry.

42. To bring its case within the purview of Section 304B IPC, a valid marriage between deceased Suman and accused Sachin to be proved by the prosecution. In the present case, the marriage between deceased Suman and accused Sachin has not been disputed on behalf of accused during the trial. PW-2/complainant Smt. Laungshree has proved the marriage card of deceased FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 38 of 84 Suman and accused Sachin exhibited as Ex. PW-2/F. She has also proved six photographs of the engagement of deceased Suman and accused Sachin, exhibited as Ex. PW-2/G (colly). She has also proved seven photographs of the marriage of deceased Suman and accused Sachin, exhibited as Ex. PW-2/H (colly), which have not been disputed by the accused. As per the testimonies of the prosecution witnesses and the marriage card, Ex. PW-2/F, the marriage between accused Sachin and deceased Suman took place on 10.07.2019 and the death of deceased Suman took place on 15.11.2019 and hence the death of deceased Suman took place within seven years of her marriage with the accused Sachin.

43. To prove its case under Section 304B IPC, the prosecution has also to prove that the death of deceased Suman was caused by burns or bodily injury or otherwise other than the normal circumstances. Such death may be suicidal as well as homicidal. The death in normal circumstances will not be covered under Sec. 304B IPC.

44. After the deceased was admitted to Deep Chand Bandhu Hospital, where she was declared brought dead, the police was informed and the dead body of deceased Suman was sent to mortuary by the police. PW-14 Dr. A. S. Bajwa conducted the postmortem on the body of deceased and proved his report Ex. PW-14/A. He also proved his final opinion regarding cause of death and as per his expert opinion, death was caused due to FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 39 of 84 'cranio-cerebral damage consequent upon blunt force impact which was sufficient to cause death in ordinary course of nature'. He also deposed that injuries no. 1 to 9 mentioned in postmortem report, Ex. PW-14/A and external injury and the head injury mentioned in internal examination in the postmortem report were possible by the shocker, Ex. MO-07 shown to him, which was recovered at instance of accused Sachin. Thus, the death of deceased Suman was not suicidal but it was homicidal. Thus, this Court has to determine whether the deceased Suman was

murdered due to the cruelty caused upon her soon before her death by the accused Sachin for the purpose of demand of dowry.

45. To establish its case under Sec. 304B IPC, one of main ingredients of the offence which is required to be established is that soon before her death, the deceased Suman was subjected to cruelty and harassment in connection with demand of dowry.

46. Soon before death does not mean at any time before or immediately before death. The expression soon before death cannot be given a narrower meaning.

47. Hon'ble Supreme Court of India in judgment titled as 'Kaliyaperumal & Anr. Vs. State of Tamil Nadu cited as (2004) 9 SCC 157' while dealing with the expression soon before death observed as under:-

"5. a conjoint reading of Section 113 B of Evidence Act and Section 304 B shows that there must be material to FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 40 of 84 show that soon before her death, the victim was subjected to cruelty or harassment. The prosecution has to rule out the possibility of natural or accidental death so as to bring it within the purview of 'death occurring otherwise than in normal circumstances'. The expression 'soon before' death is very relevant where Section 113 B of Evidence Act and Section 304 B of IPC are pressed into service. The prosecution is obliged to show that soon before the occurrence there was cruelty or harassment and only in that case presumption operates. Evidence in this regard has to be led in by the prosecution. 'Soon before' is a relative term and it would depend upon the circumstances of each case and no straitjacket formula can be laid down as to what would constitute a period soon before the occurrence. It would be hazardous to indicate any fix period, and that brings in the importance of proximity test both for the proof of an offence of dowry death as well as for raising presumption u/s 113 B of Evidence Act. The expression 'Soon before death' used in the substantive section 304 B IPC and Section 113 B of Evidence Act is present with the idea of proximity test. No definite period has been indicated and the expression 'Soon before' is not defined. A reference to the expression 'Soon before' used in Section 114 FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 41 of 84 illustration (a) of Evidence Act is relevant. It lays down that Court may presume that a man who is in possession of goods soon after the theft, is either the thief who had received the goods knowing them to be stolen, unless he can account for his possession. The determination of the period which can come within the term 'Soon before' is left to be determined by the Courts, depending upon the facts and circumstances of each case. Suffice, however, to indicate that expression 'Soon before' would normally imply that the interval should not be much between the cruelty or harassment concerned and the death in question. There must be existence of proximate and live link between the effect of cruelty based on the dowry demand and the death concerned. If the alleged incident of cruelty is remote in time and has become stale enough not to disturb the mental equilibrium of the women concerned, it would be of no consequences.

48. Similarly, Hon'ble Supreme Court of India in judgment titled as 'Ashok Kumar Vs. State of Haryana cited as (2010) 12 SCC 350' observed as under:-

"19. we have already referred to the provisions of Section 304 B of Code and most significant expression used in the Section is 'Soon before her death'. In our FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 42 of 84 view, the expression 'Soon before her death' cannot be given a restricted or narrower meaning. They must be understood in the plain language and with reference to their meaning in common parlance. These are the provisions relating to human behaviour and therefore, cannot be given a such narrower meaning which would defeat the very purpose of provisions of the act. Of course, these are the penal provisions and must receive strict construction. But, even the rule of strict construction requires that the provisions have to be read in conjunction with each other relevant provisions and the scheme of the Act. Further, the interpretation given should be one which would avoid absurd results on the one hand and would further the object and cause of law so enacted on the other.

20. we are of considered view that concept reasonable time is the best criteria to be applied for appreciation and examination of such cases"

49. As per the case of the prosecution, the marriage between accused Sachin and deceased Suman was solemnized on 10.07.2019 and death of Suman took place on 15.11.2019 i.e. after about four months of her marriage with accused Sachin. PW-2/complainant Smt. Laungshree (mother of deceased) and PW-3 Sh. Hari Chand (father of deceased) have deposed about the cruelty and harassment done to deceased Suman by accused FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 43 of 84 Sachin. PW-3 Sh. Hari Chand expired before his cross- examination could be recorded and hence his testimony cannot be read in evidence against the accused. PW-2/complainant Smt. Laungshree deposed that her husband/PW-3 Sh. Hari Chand came to Delhi to take Suman with him and at that time, PW-3 Sh. Hari Chand was asked for a sum of Rs. 50,000/- for purchasing e-rickshaw by accused Sachin and his mother Smt. Raj Kumari. However, PW-2/complainant Smt. Laungshree in her complaint, Ex. PW-2/A on the basis of which, the present FIR has been registered has stated that only accused Sachin had demanded Rs. 50,000/- for purchasing e-rickshaw from her daughter deceased Suman. PW-2/complainant Smt. Laungshree in her complaint, Ex. PW-2/A had not stated that the said demand was made by accused Sachin and her mother Smt. Raj Kumari from her husband/PW-3 Sh. Hari Chand. Thus, PW-2/complainant Smt. Laungshree has improved her version with respect to the abovesaid fact at the time of recording of her testimony in the court which creates some doubts with respect to such demand.

50. As per the case of the prosecution, accused Sachin used to drive e-rickshaw for his livelihood and this fact has also been mentioned in his disclosure statement, Ex. PW-6/K. Thus, as per the version of PW-2/complainant Smt. Laungshree the said demand of Rs. 50,000/- was made for purchasing e-rickshaw. Ld. Counsel for accused has argued that since accused Sachin was already having e-rickshaw, why he will make a demand for money for purchase of another e-rickshaw. Accused has FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 44 of 84 examined DW-1 Sh. Ashwani

Sehgal to prove the possession/ownership of e-rickshaw with accused Sachin. DW-1 Sh. Ashwani Sehgal deposed that on 23.03.2016 one battery rickshaw bearing Chasis No. MD9CHAMCRD145818, make Saarthi was sold to Sachin, S/o Sh. Ravi Shankar, R/o 42, T-Huts, near under bridge, Shakti Nagar, Delhi-110007 for consideration of Rs. 1,10,000/- and it was cash down payment. This witness was not cross-examined by the Ld. Addl. PP for the State despite opportunity given to him which means that prosecution has admitted that accused Sachin was already having one e-rickshaw. No other prosecution witness has alleged that accused ever demanded Rs. 50,000/- for purchase of e-rickshaw. This raises serious doubts on the version of PW-2/complainant Smt. Laungshree in this regard.

51. Even if, the testimony of PW-2/complainant Smt. Laungshree with respect to demand of Rs. 50,000/- for purchase of e-rickshaw is relied upon, it is to be seen whether the above- said demand falls within the purview of dowry or not. The term dowry has not been defined under Section 304B IPC. However, it has the same meaning which has been defined under Section 2 of Dowry Prohibition Act. As per Section 2 of Dowry Prohibition Act, dowry means any property or valuable security given or agreed to be given either directly or indirectly by one party to the marriage to the other party before the marriage, at the time of marriage or in connection with the marriage. There has to be a link between the property given or agreed to be given at the FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 45 of 84 marriage. Thus, every kind of payment or delivery of property by one party to the other party may not constitute dowry. Hon'ble Supreme Court of India in judgment titled as 'Appasaheb & Anr. Vs State of Maharashtra cited as AIR 2007 SC 763' observed as under:-

" In view of the aforesaid definition of word "dowry", any property or valuable security should be given or agreed to be given either directly or indirectly at or before or any time after the marriage and in connection with the marriage of the said parties. Therefore, the giving or taking of property or valuable security must have some connection with the marriage of the parties and a correlation between the giving or taking of property or valuable security with the marriage of parties is essential. Being a penal procedure, it has to be strictly constitute. Dowry is fairly well known social custom or practice in India. It is well settled principle of interpretation of statute that if the act is passed with reference to a particular trade, business or transaction and words are used which everybody conversant with that trade, business or transaction knows or understands to have a particular meaning in it, then the words are to be construed as having that particular meaning.....A demand for money on FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 46 of 84 account of some financial stringency or for meeting some urgent domestic expenses or for purchasing manure cannot be termed as demand for dowry as the said word is normally understood. The evidence adduced by the prosecution does not, therefore, show that any demand for "dowry" as defined in Section 2 of Dowry Prohibition Act was made by the appellants as what was allegedly asked for was some money for meeting domestic expenses and for purchasing manure".

52. Thus, as per the case of the prosecution and the testimony of PW-2/complainant Smt. Laungshree, it has come on record that accused Sachin who was e-rickshaw driver wanted to purchase e-rickshaw to earn his livelihood for which he needed money. Applying the law laid down by the Hon'ble Supreme Court of India in Appasaheb (Supra), this Court is of considered opinion that the said demand cannot be termed as "dowry" in connection with the marriage.

53. As per the case of the prosecution, after marriage, accused Sachin and deceased Suman were residing at T-Huts, 42, near under bridge, Shakti Nagar, Delhi. Prosecution has not examined any neighbour who might have seen the cruelty and harassment of deceased Suman by accused Sachin for the purpose of dowry. PW-2/complainant Smt. Laungshree in her cross-examination has specifically admitted that accused had not directly demanded FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 47 of 84 money from her. Thus, the charges of harassment and cruelty for the purpose of dowry as deposed by PW-2/complainant Smt. Laungshree have not been corroborated by any independent witness or any other evidence.

54. Prosecution has not proved any other previous complaint made to any other Authority with respect to the cruelty/harassment of deceased Suman by accused Sachin for the purpose of dowry. PW-2/complainant Smt. Laungshree has not deposed that any such previous complaint was ever made to any Authority or that the matter was ever discussed with the relatives/the respectable members of the society to settle the matrimonial life of deceased Suman and accused Sachin with respect to demand of dowry.

55. Thus, in view of aforesaid discussion, this court is of considered opinion that though there were estrange relationship between accused Sachin and deceased Suman but prosecution has failed to prove the ingredients of offence punishable under Sec. 498A/34 IPC & Sec. 304B IPC against accused Sachin beyond reasonable doubts.

56. Though, the prosecution has failed to prove the ingredients of offences punishable under Sec. 498A/34 IPC & Sec. 304B IPC against accused Sachin but prosecution has successfully established that deceased Suman had not committed suicide and her death was homicidal in nature which means that deceased Suman was murdered. In the present case, there is no eyewitness FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 48 of 84 and the prosecution has relied upon the chain of circumstantial evidence led through prosecution witnesses which need to be analyzed minutely.

57. The present case is based on circumstantial evidence. It is established principle of law that a witness may lie but not the circumstances. In the present case, there is no eye witness of the alleged incident of commission of offence of murder of deceased Suman.

58. The guilt of the accused in the present case has to be proved by the prosecution through the circumstantial evidence. The circumstantial evidence has to be appreciated as per the established principles of law laid down by the Hon'ble High Court of Delhi and Hon'ble Supreme Court of India. The standard of proof required for conviction in case of circumstantial evidence is that the circumstances relied upon in support of conviction must be fully established and the chain of

evidence proved by the prosecution must be so complete as not to leave any reasonable ground for a conclusion consistent with the innocence of the accused.

59. Hon'ble Supreme Court of India in Judgment titled as 'Sharad Bridhichand Sarda Vs. State of Maharashtra cited as (1984) 4 SCC 116' has laid down the five golden principles for appreciation of circumstantial evidence and has termed the same as Panchsheel of the Proof of Case based on circumstantial evidence. The said five golden principles are as follows:-

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- (i) The circumstances from which the conclusion of the guilt is to be drawn should be and not merely 'may be' fully established.
- (ii) The facts so established should be consistent only with the hypotheses of the guilt of accused, that is to say, they should not be explainable on any other hypotheses except that the accused is guilty.
- (iii) The circumstances should be of conclusive nature and tendency.
- (iv) They should exclude every possible hypotheses except the one to be proved.
- (v) There must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all probability the act must have been done by the accused.

60. Thus, before recording the conviction of accused, the abovesaid five condition must be satisfied. The prosecution has to establish its case on the basis of abovesaid five golden principles and to secure conviction of accused, the prosecution must fulfill the following requirements:-

- (i) The circumstances from which the inference of the guilt of the accused is to be drawn FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 50 of 84 must be firmly established.
- (ii) The established circumstances must be of such definite tendency that points out towards the guilt of accused.
- (iii) The chain of the circumstances must be so complete and there should not be any snap in the chain of circumstances.
- (iv) The chain of circumstances must be so complete and incapable of any other hypotheses then that the guilt of the accused and same should also be inconsistent with the innocence of the accused and must exclude every other possible hypotheses except with the hypotheses pointing out towards the guilt of the accused.

61. Prosecution has relied upon the following circumstances which have been brought on record through the evidence:-

(i) Deceased Suman and accused Sachin were residing in the same house as husband & wife and accused Sachin had admitted deceased Suman in the hospital while she was dead.

(ii) Conduct of accused Sachin.

(iii) Motive for commission of offence and the matrimonial discord between accused Sachin & deceased Suman.

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(iv) Recovery of weapon of offence and blood on the clothes of accused and blood at the spot of incident.

(v) Analysis of CDRs of mobile phones used by deceased Suman and her mother/PW-2 complainant Smt. Laungshree.

(vi) Medical and scientific evidence.

62. The evidence led by the prosecution through the above- said circumstances relied upon by the prosecution has been analysed as follows:-

(i) Deceased Suman and accused Sachin were residing in the same house as husband & wife and accused Sachin had admitted deceased Suman in the hospital while she was dead.

(i)(a). PW-2/complainant Smt. Laungshree deposed that after about 15 days of marriage, accused Sachin and her daughter deceased Suman started residing in one room Jhuggi bearing no. T-42, FCI Godown, Shakti Nagar, Delhi.

None of the prosecution witness has deposed that any other person was also residing with accused Sachin and deceased Suman at the abovesaid jhuggi. The incident has also taken place at the abovesaid jhuggi where accused and deceased were residing. Deceased was admitted to the hospital by the accused himself and at that time deceased was already dead and he had told the doctors that deceased had injured herself but PW-14 Dr. A. S. Bajwa has specifically denied the self inflicted injuries. From the defence taken by the FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 52 of 84 accused, it is clear that the deceased was alive in the company of accused Sachin before her death.

(i)(b). Hon'ble Supreme Court of India in Judgment titled as 'Prithipal Singh & Ors. Vs. State of Punjab and Anr.' Cited as (2012) 1 SCC 10 while confirming the conviction of appellant observed as

under:-

"53. In State of W.B Vs. Mir Mohammad Omar this court held that if fact is especially in the knowledge of any person, then burden of proving the said fact is upon him. It is impossible for the prosecution to prove certain facts particularly within the knowledge of accused. Section 106 is not intended to relieve the prosecution of its burden to prove the guilt of the accused beyond reasonable doubt. But the Section would apply to cases where the prosecution has succeeded in proving the facts from which a reasonable inference can be drawn regarding the existence of certain other facts, unless the accused by virtue of his special knowledge regarding such facts failed to offer any explanation which might drive the Court to draw a different inference. Section 106 of the Evidence Act is designed to meet certain exceptional cases, in which it would be impossible for the prosecution to establish certain facts which are particularly within the knowledge of accused"

(i)(c). Since deceased Suman was alive in the company of FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 53 of 84 accused Sachin at their matrimonial house, situated at T- Huts, 42, near under bridge, Shakti Nagar, Delhi, burden lies upon accused under Sec. 106 of The Indian Evidence Act to prove the fact which is especially in his knowledge. Accused has not proved the said fact.

(i)(d). Hon'ble Supreme Court of India in judgment titled as 'Nika Ram Vs. State of Himachal Pradesh, cited as (1972) 2 SCC 80' has observed as under:-

"16. It is in the evidence of Girju PW that only the accused and Churi deceased resided in the house of the accused. To similar effect are the statements of Mani Ram (PW-8), who is uncle of the accused, and Bhagat Ram, School Teacher (PW-16). According to Bhagat Ram, he saw the accused and deceased together at their house on the day of occurrence. Mani Ram (PW-8) saw the accused at his house at 03:00 pm while Poshu Ram (PW-7) saw the accused and deceased at their house on the evening of the day of occurrence. The accused also does not deny that he was with the deceased at his house on the day of occurrence. The house of accused, according to plan PM, consist of one residential room, one other small room and a verandah. The correctness of that plan is proved by A.R. Verma, Overseer (PW-5). The fact that accused alone was with Churi deceased in the house when she was murdered there with Khokhri and the fact that relations of accused with the deceased, as would be FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 54 of 84 shown hereafter, were strained would, in absence of any cogent explanation by him, point to his guilt."

(i)(e). Similarly Hon'ble Supreme Court of India in judgment titled as 'Trimukh Maroti Kirkan vs State Of Maharashtra, cited as (2006) 10 SCC 681' has observed as under:-

"22. Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime, they were seen together or the offence takes place in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation, how the wife received injuries or offers an explanation which is found to be false, it is strong circumstance, which indicates that he is responsible for the commission of crime."

(i)(f). Similarly, Hon'ble Supreme Court of India in judgment titled as 'Raj Kumar Prasad Tamarkar Vs. State of Bihar & Anr, cited as (2007) 10 SCC 433' observed as under:-

"23.....There was, thus, a remote possibility of causation of such type of injury by any other person who was not on terrace. Once the prosecution has been able to show that at FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 55 of 84 the relevant time, the room and terrace were in exclusive occupation of couple, the burden of proof lay upon the respondent to show under what circumstances, death was caused to his wife. The onus was on him. He failed to discharge the same."

(i)(g). The accused has failed to give any explanation under Sec. 106 of The Indian Evidence Act as to how the death of deceased Suman took place in his presence as it is not a case of suicide or natural death. Applying the law laid down by the Hon'ble Supreme Court of India in judgments titled as 'Prithipal Singh & Ors. (supra)', 'Nika Ram (supra)', 'Trimukh Maroti Kirkan (supra)' & 'Raj Kumar Prasad Tamarkar (supra)', this court is of considered opinion that since the injuries on the person of deceased Suman were caused in the presence of accused Sachin as admitted by him in MLC of deceased, exhibited as Ex. PW-4/A and he has failed to give any cogent explanation, in this regard and hence the circumstances strongly points out towards his guilt.

(ii) Conduct of accused Sachin.

(ii)(a). Deceased Suman was admitted to the hospital by accused Sachin on 15.11.2019 at 14:36 pm and he told the doctors that deceased Suman had injured herself and this fact has been specifically recorded by the concerned doctor in the MLC of deceased, Ex. PW-4/A. PW-14 Dr. A. S. FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 56 of 84 Bajwa had conducted the postmortem on the body of deceased and he has proved the postmortem report, Ex. PW-14/A. In the postmortem report, Ex. PW-14/A, Dr. A. S. Bajwa has mentioned 14 different types of external injuries of different sizes on different parts of the body of deceased. PW-14 Dr. A. S. Bajwa in his cross-examination has specifically deposed that it was unlikely that injuries mentioned in PM report, Ex. PW-14/A could have been sustained by hitting head on the wall. He also deposed that it was not possible that the injuries mentioned in PM report, Ex. PW-14/A were produced by self infliction. Thus, the prosecution has medically proved that the injuries mentioned on the body of deceased Suman were not self inflicted injuries and rather these injuries were caused by the accused. Accused Sachin has not examined any other expert doctor as defence witness to prove that the said injuries were possible through self infliction. Thus, the version given by PW-14 Dr. A. S. Bajwa, who is a medical expert and has given his expert opinion under Sec. 45 of The Indian

Evidence Act that the injuries mentioned in the postmortem report, Ex. PW-14/A were not possible by self infliction is hereby accepted. Thus, the accused has taken a false defence to screen himself. Hon'ble Supreme Court of India in judgment titled as 'G. Parshwanath Vs. State of Karnataka, cited as MANU/SC/0614/2010' observed as under:-

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 57 of 84 "23.....All the defences were false to the knowledge of appellant. Not a single defence was found to be probable or plausible either by the trial court or by the High Court.

The appellant could not explain satisfactorily the circumstances in which his wife and child met violent deaths. Therefore, offering of false explanation by the appellant regarding death of his wife and child will have to be regarded as additional circumstance against him strengthening the chain of circumstances already firmly found." Applyin the law laid down by Hon'ble Supreme Court of India in ' G. Parshwanath (supra)', this court is of considered opinion that defence taken by accused Sachin that deceased Suman inflicted injuries on herself is not probable or plausible and hence the said defence is false and therefore, the false defence taken by the accused is an additional circumstance against him which has strengthened the chain of circumstances against him.

(ii)(b) The previous and subsequent conduct of accused is relevant under Sec. 8 of The Indian Evidence Act, 1872. A fact can be proved by the conduct of accused and surrounding circumstances. The conduct of accused in absconding after the commission of offence, in destroying the evidence, behaving in an unnatural way etc are relevant under Sec. 8 of The Indian Evidence Act, 1872.

(ii)(c) Hon'ble Supreme Court of India in Judgement titled as Prithipal Singh & Ors. Vs. State of Punjab and Anrs.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 58 of 84 Cited as (2012) 1 SCC 10 while confirming the conviction of appellant observed as under:-

"78. Most of the appellants had taken alibi for screening themselves from the offences. However, none of them could establish the same. The Courts below have considered this issue elaborately as in order to avoid repetition, we do not want to re-examine the same. However, we would like to clarify that the conduct of accused subsequent to the commission of crime in such a case, may be very relevant. If there is sufficient evidence to screen/absolve himself from the offence, such circumstance may point towards his guilt. Such a view stands fortified by the judgment of this Court in 'Anant Chintaman Lagu Vs. State of Bombay."

(ii)(d). Thus, applying the law laid down by the Hon'ble Supreme Court of India in Prithipal Singh & Ors. (supra), this court is of considered opinion that the subsequent conduct of accused in screening himself by telling the doctors that deceased had inflicted injuries on herself is relevant under Sec. 8 of The Indian Evidence Act, 1872 and it has pointed out towards his guilt.

(iii) Motive for commission of offence and the matrimonial discord between accused Sachin & deceased Suman.

(iii)(a). Ld. Defence counsel for accused has argued that prosecution has failed to prove the motive of commission of FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 59 of 84 offence and the benefit of same should be given to accused. Per contra, Ld. Addl. PP for the State has argued that there were no cordial relationship between the deceased Suman and accused Sachin and motive for the commission of offence has been duly proved by the prosecution.

(iii)(b). Motive is relevant under Sec. 8 of Indian Evidence Act. Motive is the force that moves a man to do a particular work. Generally there can be no action without any motive. Under Section 8 of Evidence Act, several factors including preparation, previous threat, previous altercation, previous litigation between the accused and the victim becomes relevant. The mere existence of motive by itself is not an incriminating circumstance. Motive cannot be a substitute of proof, however, it is an corroborating factor in proving the case of the prosecution. The motive for the commission of offence is of vital importance in a criminal trial and in cases based on circumstantial evidence motive itself will be a circumstance which the Court has to consider deeply. The existence of motive which operates in the mind of perpetrator may not be known to others and hence it has to be inferred from the facts and circumstances of this case.

(iii)(c). Hon'ble Supreme Court of India in judgment titled as Sheo Shankar Singh Vs. State of Jharkhand and Anr cited as (2011) 3 SCC 654 observed as under:-

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 60 of 84 "15. The legal position regarding proof of motive as an essential requirement for bringing home the guilt of accused is fairly well settle by a long line of decision of this Court. These decisions have made a clear distinction between cases where the prosecution relies upon the circumstantial evidence on one hand and those were relies upon the testimonies of the eye witnesses on the other. In the former category of cases proof of motive is given the importance it deserves, for proof of motive itself constitutes a link in the chain of circumstances upon which the prosecution may rely. Proof of motive, however, recedes into background in cases where the prosecution relies upon and eye witness account of the occurrence. That is because if the Court upon a proper appraisal of the deposition of the eye witnesses comes to the conclusion that the version given by them is credible, absence of evidence to prove the motive is rendered inconsequential. Conversely, even if the prosecution succeeds in establishing a strong motive for the commission of the offence, but the evidence of the eye witnesses is found unreliable or unworthy of credit, existence of motive does not by itself provide a safe basis for convicting the accused. That does not, however, mean that proof of motive even in a case which rests on an eye witness account does not lend strength to the prosecution case or fortify the Court in its ultimate conclusion proof of motive in FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 61 of 84 such a situation certainly helps the prosecution and supports the eye witnesses."

(iii)(d). Hon'ble Supreme Court of India in Judgment tilted as Raghbir Singh Vs. State of Punjab cited as (1996) 9 SCC 233 observed as under:-

"7.... The motives may be minor but nonetheless they did provide occasion for attack on the deceased by the appellants. That apart, even in absence of motive, the guilt of culprit can be established in a given case if the other evidence on record is trustworthy in the absence of proof of motive has never been considered as fatal to the prosecution case where the ocular evidence is found reliable".

(iii)(e). In the testimony of PW-2/complainant Smt. Laungshree, it has come on record that it was second marriage of deceased Suman with accused Sachin and earlier she was married to one Laxman. PW-2/complainant Smt. Laungshree in her cross-examination has denied the fact that she had not disclosed the factum of earlier marriage of her daughter deceased Suman with Laxman to accused Sachin and his family. From the abovesaid plea taken by the accused, it seems that earlier marriage of deceased Suman was not disclosed to accused Sachin by parents of deceased Suman before marriage of deceased Suman with accused.

FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 62 of 84 This may be one of the reason for the strained relationship between deceased Suman and accused Sachin.

(iii)(f). PW-2/complainant Smt. Laungshree deposed that about ten days prior to festival of Diwali, her daughter/deceased Suman telephonically informed that she was having pain in her stomach and her husband/accused Sachin was not taking her for treatment. She further deposed that she talked with Sachin over the mobile phone and asked him as to why, he was not taking Suman for medical treatment upon which, Sachin replied that he did not have money and also asked her to take her daughter back. She also deposed that after 2-3 days, her husband, PW-3 Sh. Hari Chand went to Delhi and took her daughter to their native place. She also deposed that accused Sachin and his mother Smt. Raj Kumari used to harass deceased on regular basis. Accused in the cross-examination of PW-2/ complainant Smt. Laungshree has not explained as to why the deceased was not being taken for her medical treatment. From the testimony of PW-2/complainant Smt. Laungshree, it has come on record that the financial condition of accused was not good and he was not taking care of deceased.

(iii)(g). PW-2/complainant Smt. Laungshree deposed that accused Sachin took her daughter Suman back to Delhi on 11.11.2019 after giving assurance that he would not ill treat her. She further deposed that in the evening of 11.11.2019, FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 63 of 84 she made call to her daughter who told her that accused Sachin had again quarreled with her for not brining money and had also broken Chullah. She also deposed that on next day i.e. 12.11.2019, his daughter Suman made a telephonic call to her from Mohalla Clinic and told her that she was given beatings by accused Sachin. She also deposed that the concerned doctor was also brought on line by her daughter in which the said doctor had asked to her to come to Delhi as her daughter had received grave injuries and she told the doctor that she was at a far place and she could not come on that day and asked the doctor to give proper treatment to her daughter. She further deposed that on next day i.e. 13.11.2019, she along with her husband went to matrimonial home of her daughter at

Delhi and met accused Sachin and his parents and asked them to take his daughter back but they did not allow her daughter to go back with them. She also deposed that mother of accused Sachin said that what had happened, if Sachin who was husband of her daughter had given beatings to her daughter and she will get her daughter treated. She also deposed that she requested them several times but they did not allow their daughter to accompany them to native place. Thus, it has come on record that accused Sachin was ill-treating the deceased Suman.

(iii)(h). PW-2/complainant Smt. Laungshree deposed that on the evening of 14.11.2019, she talked with her daughter FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 64 of 84 deceased Suman who told her that no treatment was given to her. Accused has examined DW-2 Dr. Nishant Kumar Jha, who proved the ultrasound report of deceased Suman dated 14.11.2019, exhibited as Ex. DW-2/A. Dr. Nishant Kumar Jha deposed that as per finding, it was case suggestive of missed abortion. 'Missed Abortion' is a medical term for pregnancy in which the fetus has died but the body has not yet recognized the loss and has not expelled the pregnancy tissues. Thus, in case of missed abortion, the child dies in the womb of woman but same is not discharged from the body and in such a condition, medical treatment is required. Accused has proved only the ultrasound record of deceased, Ex. DW-2/A through which it has been proved that deceased was suffering from stomach pain/illness due to the missed abortion but the accused had not produced any medical document to prove that the deceased was given any medical treatment by any doctor for missed abortion. Thus, the version of PW-2/complainant Smt. Laungshree has been corroborated that deceased was not given any medical treatment.

(iii)(i). PW-2/complainant Smt. Laungshree deposed that on 15.11.2019, she left for Delhi from her native place and while she was on her way, she talked to her daughter deceased Suman, who told her that due to the beatings given by accused Sachin 'jo uske pet main bachcha tha wo kharab ho gaya hai' and the doctor was telling that first police case FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 65 of 84 would be registered and thereafter, treatment would be given. She further deposed that on phone, she overheard accused Sachin saying to her daughter that he would first kill her daughter Suman and thereafter police case would be registered. It seems that from the version of doctor for registration of police case, accused got angry and made his intention clear to kill the deceased and the deceased was killed after some time on the same day. Thus, from the testimony of PW-2/complainant Smt. Laungshree, it has come on record that the matrimonial relationship between the accused and deceased were very bad and accused used to give beatings to the deceased. From the testimony of PW-2/complainant Smt. Laungshree, it has also come on record that deceased was brought deceased to Delhi by accused Sachin on 11.11.2019 and on that day, he had quarreled with deceased and she was also given beatings on the very next day i.e. 12.11.2019 and on 13.11.2019, the parents of deceased visited matrimonial house of deceased at Delhi. It has also come on record that on 14.11.2019, through ultrasound report, Ex. DW-2/A, missed abortion of deceased was revealed but she was not given any treatment and on 15.11.2019 when she was taken to the doctor, accused Sachin got angry on the version of doctor for registration of case and he threatened to kill deceased Suman, who was killed on the very same day. Thus, prosecution has successfully brought on record that matrimonial relationship between accused and deceased FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 66 of 84 were very bad, the factum of previous marriage of deceased may not have been disclosed to accused and his family, deceased was not being given

medical treatment, deceased was being ill-treated and beaten by accused Sachin and accused Sachin had made his intentions clear to kill deceased Suman which are sufficient to constitute a motive to commit the offence of murder of deceased Suman. Applying the law laid down by the Hon'ble Supreme Court of India in judgment titled as Sheo Shankar Singh (supra) and Raghubir Singh (supra), this court is of considered opinion that prosecution has successfully proved the motive for the commission of offence of murder of deceased Suman in the present case.

(iv) Recovery of weapon of offence and blood on the clothes of accused and blood at the spot of incident.

(iv)(a). As per prosecution story, the weapon of offence i.e. one blood stained shocker of e-rickshaw make 'SA SAARTHI', Ex. MO-07 was recovered at instance of accused Sachin on the basis of his disclosure statement, Ex. PW-6/K, which was seized by the IO vide seizure memo Ex. PW-6/O. Blood stained clothes of accused, which were worn by him when he took the deceased to hospital were also seized by the IO vide seizure memo Ex. PW-6/N. The recovery of the case property has to be proved by the prosecution beyond reasonable doubt in compliance with the law laid down in this regard by Hon'ble Supreme Court FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 67 of 84 of India. Section 27 of Indian Evidence Act is an exception to Section 25 and Section 26 of the said Act. Section 27 is based on the doctrine of confirmation by subsequent events. The principle under Sec. 27 of Indian Evidence Act is based on the principle that if any fact is discovered on the basis of disclosure statement of accused, the discovery of said fact is a guarantee that the information given by the accused in his disclosure statement is true. Such information may be confessional or non-inculcating in nature but if any new fact is discovered from such information it will be considered as a reliable information.

(iv)(b). The fact discovered on the basis of disclosure of statement of accused must be relevant facts. Such information must be given by the person who is accused of an offence and the recovery of article or discovery of fact must be based upon the information given by such accused.

(iv)(c). Hon'ble Supreme Court of India in judgment titled as 'Pawan Kumar @Monu Mittal Vs. State of U.P & Anr. cited as (2015) 7 SCC 148' has held that the facts discovered under Sec. 27 of Indian Evidence Act and embraces the place from which object was produced and knowledge of the accused as to it, but information given must relate distinctly to that effect and hence if the accused are denying their role without proper explanation as to the knowledge about the incriminating material recovered on the basis of their FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 68 of 84 statements in police custody, would justify the presumption drawn by the Courts below as to the involvement of the accused in the Crime.

(iv)(d). In the present case, accused Sachin was apprehended in the hospital itself and after registration of FIR, he was arrested in the present case. Accused Sachin made disclosure statement, Ex. PW-6/K that he had hit the deceased with e-rickshaw shocker, Ex. MO-07 lying in his room and on the basis of his disclosure statement, he got recovered the said shocker which was seized by the IO vide seizure memo Ex. PW-6/O and the said fact was not in the knowledge of IO and hence the recovery of shocker, Ex. MO-07 at instance of accused Sachin which is relevant under Sec. 27 of The

Indian Evidence Act, 1872. It is pertinent to mention that DW-1 Sh. Ashwani Sehgal deposed that on 23.03.2016, he had sold battery rickshaw having chasis no. MD9CHAMCRD145818, make 'Saarthi' to accused Sachin, S/o Sh. Ravi Shankar, R/o 42, T-Huts, under bridge, Shakti Nagar, Delhi and the recovered shocker is also of make Saarthi and accused has not taken any defence with respect to recovery of the shocker, Ex. MO-07, make Saarthi at his instance. The seizure of blood stained clothes of accused is also an additional evidence against the accused. Thus, the prosecution has successfully proved the recovery of weapon of offence i.e. shocker, make Saarthi Ex. MO-07 at instance of accused Sachin.

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(v) Analysis of CDRs of mobile phones used by deceased

Suman and her mother/PW-2 complainant Smt. Laungshree.

(v)(a). The analysis of CDR of mobile phones used by deceased Suman and by her mother PW-2/complainant Smt. Laungshree is relevant in the present case. PW-16 Sh. Praveen Kumar, Nodal Officer, Reliance Jio has proved the e-KYC, CDR, Cell ID Chart along with certificate under Sec. 65B of The Indian Evidence Act of mobile phone no. 7819868362 issued in name of Ms. Suman, D/o Sh. Hari Chand. Thus, the abovesaid mobile phone number was being used by deceased Suman which was seized by the IO from possession of accused vide seizure memo Ex. PW-6/L. PW-16 Sh. Praveen Kumar also proved the CDR and e- KYC of mobile phone no. 6395172134 issued in name of Inderjeet, S/o Sh. Hari Chand, R/o Village Narora Khadar, Debai, Buldandshihar, Uttar Pradesh, who is brother of deceased and son of PW-2/complainant Smt. Laungshree and PW-3 Sh. Hari Chand. As per the case of the prosecution, the abovesaid mobile was being used by PW-2/complainant Smt. Laungshree. The accused has not disputed the fact that said mobile phone was not being used by PW-2/complainant Smt. Laungshree as no question in this regard have been put to PW-2/complainant Smt. Laungshree. Moreover, PW-16 Sh. Praveen Kumar has also not been cross-examined on this aspect. On the perusal of complaint given by PW-2/complainant Smt. Laungshree, FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 70 of 84 which was recorded by Executive Magistrate, exhibited as Ex. PW-2/A, it has been revealed that PW-2/complainant Smt. Laungshree had mentioned the abovesaid mobile phone number in her particulars in the abovesaid complaint. Thus, the abovesaid mobile phone numbers i.e. 7819868362 & 6395172134 were being used by deceased Suman and PW-2/complainant Smt. Laungshree respectively.

(v)(b). PW-2/complainant Smt. Laungshree has deposed that she used to talk with her daughter/deceased Suman on phone and she has narrated about her conversations with the deceased over phone on different dates. PW-2/complainant Smt. Laungshree in her cross-examination has specifically deposed that she had mentioned in her statement, Ex. PW-2/A that 'Sachin zid kar ke meri beti to lekar Delhi aa gaya'. She also deposed that accused Sachin took her daughter back after giving assurance that he would not ill treat her daughter and he was swearing in name of Dharti Mata and god that he would not ill treat her daughter. PW-2/complainant Smt. Laungshree has specifically deposed about the phone calls between her and

her deceased daughter on 11.11.2019, 12.11.2019, 14.11.2019 & 15.11.2019 and she has narrated about the sufferings of her daughter which were narrated by deceased Suman to her on these phone calls. It is pertinent to mention that deceased was taken by the accused from her parent's house to matrimonial house on 11.11.2019 and since the relationship FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 71 of 84 between accused and deceased were not going smooth, PW-2/complainant Smt. Laungshree was worried about her daughter and from 11.11.2019 to 15.11.2019 about 28 phone calls have taken place between deceased and her mother. About 12 phone calls have taken place between deceased Suman and her mother PW-2/complainant Smt. Laungshree on the date of incident also i.e. on 15.11.2019. The number of phone calls and frequency of calls between deceased and her mother PW-2/complainant Smt. Laungshree shows that the relationship between accused and deceased was deteriorating at a fast pace and PW-2/complainant Smt. Laungshree was concerned about the medical treatment and safety of her deceased daughter Suman. Thus, the phone calls between deceased Suman and her mother PW-2/complainant Smt. Laungshree during the last five days till the date of incident has strengthened the case of the prosecution. Accused has not explained as to why so many phone calls were taking place between them.

(vi) Medical and scientific evidence.

(vi)(a). PW-4 Dr. Jyotsna Saini deposed that on 15.11.2019, she was posted as CMO at Deep Chand Bandhu Hospital, Ashok Vihar Delhi and on that day patient Suman, W/o Sachin was brought to the Casualty at 02:36 pm by her husband Sachin. She further deposed that patient Suman was brought dead in the Casualty and there were multiple FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 72 of 84 injuries on her person. PW-4 Dr. Jyotsna Saini proved the MLC of deceased Suman, Ex. PW-4/A, prepared by her. This witness was not cross-examined on behalf of accused despite opportunity given to him. PW-14 Dr. A. S. Bajwa had conducted the postmortem on the body of deceased Suman and he has proved the postmortem report, Ex. PW-14/A prepared by him. As per the postmortem report of deceased Suman, there were about 14 different injuries of different sizes and of different nature on different parts of the body of deceased. Accused has taken the defence that said injuries were self inflicted injuries. PW-14 Dr. A. S. Bajwa in his cross-examination has specifically deposed that the injuries mentioned in postmortem report were unlikely to have been caused by hitting head against the wall. He also deposed that it was not possible that the injuries mentioned in the postmortem were produced by self infliction. He also deposed that injuries no. 11 to 14 were caused by sharp pointed weapon. PW-14 Dr. A. S. Bajwa specifically deposed that injuries no. 1 to 9 mentioned in the postmortem report and external injury and head injury mentioned at internal examination as mentioned in the postmortem were possible by the weapon of offence i.e. shocker Ex. MO-07, shown to him. Accused has failed to create a doubt that the injuries caused on the different parts of body were self inflicted injuries. As per the postmortem report, Ex. PW-14/A, the cause of death of deceased Suman was 'carnio-cerebral damage consequent upon blunt force FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 73 of 84 impact which was sufficient to cause death in ordinary course of nature'. Thus, the case of prosecution squarely falls within the purview of Clause thirdly of Sec. 300 IPC. The case of the prosecution also squarely falls within the purview of Clause Firstly & Secondly of Sec. 300 IPC as the accused had intention to kill deceased Suman and he had caused bodily injuries to deceased Suman as he knew that such injuries may

likely cause death. Thus, the medical evidence adduced by the prosecution is against the accused and prosecution has successfully proved the ingredients of Sec. 300 IPC for the offence of murder which is punishable under Sec. 302 IPC.

(vi)(b). PW-21 Inspector Rajender Kumar deposed that he alongwith PW-2/complainant Smt. Laungshree, police staff with Crime Team went to the spot i.e. T-42, near FCI Godown, Railway line, near under bridge, Shakti Nagar. He deposed that blood was found scattered at the spot. PW-6 ASI Rajeev Kumar has corroborated the version of PW-21 Inspector Rajender Kumar by deposing that blood was found scattered on the ground and one pair of gent footwear, one single lady footwear, one piece of stone, one shawl, all bloodstained were found at the spot. PW-21 Inspector Rajender Kumar deposed that Crime Team officials inspected the spot of incident and photography was also conducted. PW-22 Inspector Surender Kumar, In-charge, Mobile Crime Team has proved his inspection report FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 74 of 84 exhibited as Ex. PW-21/A in which abovesaid facts have been mentioned. PW-13 HC Hardev who was member of Mobile Crime Team and was photographer has proved the photographs of the spot of incident along with CD of photographs and certificate under Sec. 65B of The Indian Evidence Act, exhibited as Ex. PW-13/A to Ex. PW-13/C. He has also proved the photographs of the dead body of deceased exhibited as Ex. PW-2/I. On the persual of photographs, it is revealed that blood was scattered all around the spot of incident and the articles mentioned by PW-6 ASI Rajeev Kumar and PW-21 Inspector Rajender Kumar were available there. In the photographs of deceased, it can be seen that she was badly injured and there was a major injury on her head.

(vi)(c). The weapon of offence, clothes of deceased and accused and exhibits collected from the spot of incident were seized by the IO. The abovesaid exhibits were sent to FSL through PW-8 Ct. Harikesh & PW-9 HC Ramavtar. PW-8 Ct. Harikesh deposed that on 28.11.2019, on direction of IO, he obtained ten sealed parcels with two sample seals vide RC No. 75/21/19 from the MHC(M) and deposited the same at FSL Rohini. He proved the acknowledgment received for FSL Rohini, Ex. PW-8/A. He specifically deposed that no termpering was done with the sealed parcels till these remained in his possession. Accused has failed to put any dent on the veracity of PW-8 Ct. Harikesh in his FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 75 of 84 cross-examination. Similarly, PW-9 HC Ramavtar deposed that on 03.12.2019, on direction of IO, he obtained one sealed exhibit with sample seal from MHC(M) vide RC No. 78/21/19, Marked PW-9/A and deposited the same at Hindu Rao Hospital and obtained receiving on the road certificate at point 'X'. He also deposed that no tempering was done with the sealed exhibit and the sample seal till it remained in his possession. This witness was not cross-examined on behalf of accused despite opportunity given to him. PW-20 Dr. Sompal Singh deposed that in February, 2020, he along with Dr. Sonam K. Pruthi, Dr. Arzoo Jahan & Dr. Praveen Prakash conducted histopathological examination of the organs of deceased sent by police in sealed condition. Similarly, PW-15 Dr. Amita Raghav has also deposed that on 28.11.2019, ten sealed parcels were received in the office which were assigned to her for examination. She also deposed that she tallied the sealed impression with the forwarding letter and found the same to be intact. Thus, the prosecution has proved the safe custody of exhibits from the point of seizure to the point of opening the same at FSL & at Hindu Rao Hospital by the concerned experts.

(vi)(d). PW-20 Dr. Sompal Singh deposed that during February, 2020, he along with Dr. Sonam K. Pruthi, Dr. Arzoo Jahan & Dr. Praveen Prakash conducted histopathological examination of the organs of deceased sent by police in sealed condition. He proved his FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 76 of 84 histopathological report, Ex. PW-20/A. He further deposed that as per findings, deceased was pregnant. Thus, through the testimony of PW-20 Dr. Sompal Singh and DW-2 Dr. Nishant Kumar Jha, it has come on record that deceased Suman was pregnant and her missed abortion had taken place while she was alive. Thus, the version of PW-2/complainant Smt. Laungshree has been corroborated by the medical evidence.

(vi)(e). PW-15 Dr. Amita Raghav deposed that on 28.11.2019, she was posted at FSL Rohini as Junior Forensic Chemical Examiner and on that day, ten sealed parcels were received in the office and same were assigned to her for examination with forwarding letter. She further deposed that she opened the parcels, examined the exhibits and prepared her detailed report, Ex. PW-15/A. She also proved allelic data report, Ex. PW-15/B. Accused has failed to create any doubt with respect to the findings of PW-15 Dr. Amita Raghav given by her in her FSL Report and allelic data report as Ex. PW-15/A & Ex. PW-15/B. As per the FSL report, Ex. PW-15/A, the source of exhibit '1a' (blouse), '1b' (sweater), '1c' (peticoat), '1d' (saree), i.e. brassier, '2' (blood stained gauze cloth piece), '3' (gauze cloth piece), '4' (men's pair of slipper), '5' (lady's slipper), '6' (stone piece), '7' (shawl), '8' (stone piece), '9' (iron shocker), '10a' (shirt), '10b' (baniyan) & '10c' (pants) were subjected to DNA isolation and DNA was isolated from the FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 77 of 84 source of exhibits '1a', '1b', '1c', '1d', '2', '3', '4', '5', '6', '7', '8', '9', '10a', '10b' & '10c'. Female DNA profile was generated from the source of exhibits '1a', '1b', '1c', '1d', '2', '3', '4', '5', '7', '10a', '10b' & '10c', however, DNA profile could not be generated from source of exhibit '6', '8' & '9', which may be due to de-gradation/inhibition of DNA. As per the FSL report, the DNA generated from exhibit '2' (blood stained gauze cloth piece) was matching with DNA profile generated from source of exhibits '1a' (blouse of deceased), '1b' (sweater of deceased), '1c' (peticoat of deceased), '1d' (saree of deceased), i.e. brassier of deceased, '3' (gauze cloth piece from spot), '4' (men's pair of slipper from spot), '5' (lady's slipper from spot), '7' (shawl from spot), '10a' (shirt of accused), '10b' (baniyan of accused) & '10c' (pants of accused). Thus, the blood found at the spot of incident as well as on the clothes of deceased matched with the blood found on the clothes of accused. Though, DNA could not be generated from exhibit '6' (stone piece), '8' (stone piece) & '9' (iron shocker) but same is not fatal to the case of prosecution as in the FSL report, Ex. PW-15/A, it has been specifically mentioned by PW-15 Dr. Amita Raghav that the DNA profile could not be generated from the abovesaid exhibits due to de-gradation/inhibition. PW-6 ASI Rajeev Kumar has specifically deposed that the piece of stone was blood stained. PW-21 Inspector Surender Kumar in his inspection report has also specifically mentioned that the stone piece FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 78 of 84 found at the spot was blood stained. PW-13 HC Hardev Singh has proved the photographs of the spot of incident clicked by him, exhibited as Ex. PW-13/A. Even in the photographs, Ex. PW-13/A, the piece of stone can be seen as bloodstained. Similarly, PW-10 ASI Surender Kumar deposed that accused got recovered one shocker of e- rickshaw from the park near his jhuggi and same was also bloodstained, which was taken into possession vide seizure memo Ex. PW-6/O. In the seizure memo of shocker, Ex. PW-6/O, it has been specifically mentioned that there were blood stains on that shocker. Thus, the prosecution has proved that all the articles seized from the spot of incident including stone piece and the weapon of offence i.e. shocker seized from the spot

situated near the spot of incident were blood stained and non-generation of DNA profile from stone piece and the shocker due to possibility of de-gradation does not affect the case of prosecution on merits. Thus, the medical and scientific evidence adduced by the prosecution is also against the accused.

63. The basic purpose of recording of statement of accused under Sec. 313 Cr.P.C is to put in the incriminating evidence brought on record against him by the prosecution and to accord him an opportunity to explain the circumstances appearing against him.

64. Hon'ble Supreme Court of India in Judgment titled as 'Neel Kumar Vs. State of Haryana cited as (2012) 5 SCC 766' FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 79 of 84 has held that:-

it was the duty of the accused to explain incriminating circumstances proved against him while making statement u/s 313 Cr.P.C. Keeping silent and not furnishing any explanation for such circumstance was an additional link in chain of circumstances to sustain charges against you.

65. Similar Hon'ble Supreme Court of India in Judgment titled as Phula Singh Vs. State of Himachal Pradesh AIR 2014 SC 1256 has held that:-

if the accused remains silent or in complete denial, the Court can take adverse inference against you.

66. Hon'ble Supreme Court of India in judgment titled as Sidhartha Vashisht Vs. State (NCT of Delhi) cited as (2010) 6 SCC 1 while convicting the accused and taking adverse inference against him with respect to the false answers given by him u/s 313 Cr.P.C observed as under:-

"130. This Court has time and again held that where an accused furnishes false answers as regards proved facts, the Court ought to draw an adverse inference qua him and such an inference shall become an additional circumstance to prove the guilt of the accused in the present case, the appellant Manu Sharma has inter alia has taken false pleas in reply FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 80 of 84 to question no. 50, 54, 55, 56,57,64, 65,67,72,75 and 201 put to him under Section 313 of the Code."

67. In the present case, the statement of accused under Sec. 313 Cr.P.C was recorded and in reply to the most of the questions put to him, he has stated either 'I do not know' or 'It is a matter of record'. In answer to question no. 48, accused has stated that all the witnesses were interested witnesses and he had been implicated on the basis of suspicion. In answer to question no. 50, he has stated that he was innocent. Accused has taken the defence in the cross-examination of prosecution witnesses and in the examination of DW-1 Sh. Ashwani Sehgal with respect to demand of dowry and he has been successful in putting a dent on prosecution story with respect to the charges of cruelty and dowry death. However, accused has not taken any specific defence either in the cross examination of

prosecution witnesses or in his statement recorded under Sec. 313 Cr.PC with respect to the commission of offence of murder. Accused has not taken the defence of alibi. He has also not taken the defence of presence of any other person at the spot of incident who could have committed the said offence and rather he had taken a false defence that the injuries were inflicted by the deceased on her own. The answers given by the accused to the questions put to him under Sec. 313 Cr.PC are vague as well as evasive in nature and he has not explained as to how, the injuries were sustained by deceased in his presence and why he gave a false version to the doctor with respect to the injuries caused to the deceased and FIR No. 173/2019, PS: Roop Nagar State Vs. Sachin. Page No. 81 of 84 why PW-2/complainant Smt. Laungshree would falsely implicate him. In these circumstances, applying the law laid down by Hon'ble Supreme Court of India in 'Neel Kumar (supra), Phula Singh (Supra and Sidharth Vashisth (supra)' this court is of considered opinion that accused has not furnished any explanations for these circumstances hence these circumstances are additional link in the chain of circumstantial evidence against him.

68. During the trial, none of the prosecution witness has turned hostile. The testimony of PW-2/complainant Smt. Laungshree with respect to the circumstances which led to death of deceased Suman is clear, cogent and trustworthy and to that extent she is a witness of sterling quality. The IO as well as other police witnesses have duly proved the proceedings conducted by them. PW-4 Dr. Jyotsna Saini, PW-14 Dr. A. S. Bajwa, PW-20 Dr. Sompal Singh and DW-2 Dr. Nishant Kumar Jha have duly proved the medical evidence against the accused. PW-15 Dr. Amita Raghav has duly proved the scientific evidence against the accused. During the cross-examination of the prosecution witnesses, accused has failed to put any dent on the prosecution story with respect to the circumstances in which death of deceased Suman took place.

69. On appreciation of entire evidence led by the prosecution and applying the law laid down by Hon'ble Supreme Court of India in 'Sharad Birdichand Sharda (Supra)', this court has reached on the following conclusions:-

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1. This court is of the considered opinion that the evidence led by the prosecution against accused with respect to commission of offence punishable under Sec. 302 IPC is clear, cogent, credible and trustworthy.
2. The commission of offence punishable under Sec. 302 IPC against accused Sachin has been fully established through the circumstances brought on record by the prosecution. From the evidence on record, prosecution has successfully established the facts constituting the offence of murder and the established facts indicate towards the guilt of accused Sachin and same are consistent.
3. The circumstances proved by the prosecution are conclusive in nature and tendency.

4. The facts established by the prosecution have excluded every possible hypotheses except the one which has been proved by the prosecution against accused Sachin.

5. The chain of evidence led by the prosecution is so complete that it does not leave any ground for conclusion consistent with the innocence of accused Sachin and it has been proved by the prosecution that in all probability, accused Sachin had committed murder of deceased Suman.

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70. In the light of aforesaid discussion, this court is of the considered opinion that prosecution has proved its case beyond reasonable doubt against accused Sachin for the offence punishable under Sec. 302 IPC. However, prosecution has failed to prove its case against accused Sachin for the offences punishable under Sec. 498A/34 IPC & Sec. 304B IPC.

71. Accordingly, accused Sachin is hereby convicted for the offence punishable under Sec. 302 IPC. Accused Sachin is hereby acquitted for the offences punishable under Sec. 498A/34 IPC & Sec. 304B IPC.

Announced in the open court

on 15th day of November, 2025

VIRENDER KUMAR
KUMAR
KHARTA

KHARTA

Date:

2025.11.15

14:48:39 +0530

(Virender Kumar Kharta)
ASJ/FTC-02(CENTRAL)

TIS HAZARI COURTS:DELHI:15.11.2025

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